

finer on their admission.] If a copyhold be devised to trustees for *five hundred years* on certain trusts, with remainder to A. B. in fee, and the lord admits A. B. not as remainderman, but as a present tenant and upon payment of a full fine, the lord has a perfect tenant, and cannot compel the *termors* to be admitted (c). The Court in this case adverted to several points of practical importance, which are worth noticing. Thus: 1. It is commonly said that an admission is void, except so far as it follows the uses of the surrender or will; but the Court held that the excess of the admission is void only as against the parties interested, and that the lord may be estopped by his own act. 2. Where the termors have been admitted, the lord may require the admission of the executor of the last survivor, for the lord is entitled to a tenant or to possession. 3. The admission of the tenant for life or for years is a constructive admission of the remainderman, but such an admission does not disentitle the lord to call for a subsequent admission of the remainderman, where the custom of the manor gives the lord a fine in respect of the remainder. 4. The lord is not bound to admit a remainderman, but if he do admit him *as such remainderman* although this admission may be a constructive admission of the particular estate, the lord may afterwards require the tenant for life or years to be admitted for the purposes of a new fine.

Principle on which the fine is assessed. — Where a number of trustees are admitted as the joint owners of the trust estate, the fine is to be assessed upon the following principle; for the first life is to be allowed the fine usually paid on the admission of a single tenant, for the second life one-half the sum taken for the first, and for the third one-half the sum taken for the second, &c.; the result of which will be, that, however great the number of the trustees admitted, the amount of the whole fine will never be double of that paid upon the first life (d). And on every *change [*237] of trustees the same fine is demandable, even where some of the surrenderees are the survivors of the old trus-

(c) *Everingham v. Ivatt*, 7 L. R. Q. B. 683; affirmed 8 L. R. Q. B. 388.

(d) *Wilson v. Hoare*, 2 B. & Ad. 350, see 360; 10 Ad. & Ell. 236, and 1 Scriven, Copyh. 164, 165, 6th edit.